



Bill Number: S.B. 1247

Petersen Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Allows an individual who does not receive supervisory, personal or directed care services to live with a resident in an assisted living center or home, rather than only an assisted living center.
2. Adds an emergency clause.

PETERSEN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1247
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-407.04, to read:

4 36-407.04. Assisted living centers; assisted living homes;
5 occupants; prohibitions

6 NOTWITHSTANDING SECTION 36-407, SUBSECTION A AND IF ALLOWED BY AN
7 ASSISTED LIVING CENTER [OR AN ASSISTED LIVING HOME], AN INDIVIDUAL WHO
8 DOES NOT RECEIVE SUPERVISORY CARE SERVICES, PERSONAL CARE SERVICES OR
9 DIRECTED CARE SERVICES MAY LIVE WITH A RESIDENT IN THE ASSISTED LIVING
10 CENTER [OR ASSISTED LIVING HOME] IN THE RESIDENT'S UNIT OR MAY LIVE IN ANY
11 OTHER UNIT WITHIN THE ASSISTED LIVING CENTER [OR ASSISTED LIVING HOME].
12 THE DEPARTMENT MAY NOT:

13 1. PLACE ANY REQUIREMENT ON THAT INDIVIDUAL WITH WHICH A RESIDENT
14 WOULD NOT NEED TO COMPLY.

15 2. REQUIRE THAT INDIVIDUAL TO HAVE A SERVICE PLAN OR TO RECEIVE
16 SUPERVISORY CARE SERVICES, PERSONAL CARE SERVICES OR DIRECTED CARE
17 SERVICES.

1 <<Sec. 2. Emergency
2 [This act is an emergency measure that is necessary to preserve the
3 public peace, health or safety and is operative immediately as provided by
4 law.]>>

5 Enroll and engross to conform

6 Amend title to conform

WARREN PETERSEN

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C: MH

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